

The Second Monopoly

The Patent Expired. The Exclusion Didn't — and It Doubled the Cost of American Living.

How a Constitutional Bargain Was Cancelled — Restoring It Frees Buyers from Surveillance, Stops Robots Replacing America's Drivers & Operators, and Returns the Joy of Operating Real Machines
A constitutional law litigation strategy and a citizen's playbook — in one book.

Roleigh Martin · foreword by Gord Magill

The claim, in brief

Article I, Section 8, Clause 8 was written in 1787, more than two years before the first patent law. Its words — “securing for limited Times to Authors and Inventors the exclusive Right...” — are therefore a constitutional limit on securing exclusivity by any means, not merely a rule for patent statutes. A secured restriction against competition must expire. For 183 years no second federal power crossed that limit; the encroachments the Court struck down came from state law and private contract.

When a patent expires, the engineering design passes to the public — anyone may make, use, and improve it — while the maker's brand and logo stay protected. Yet since 1970, federal energy, emissions, and safety standards have raised a second, potentially permanent exclusion. No rule forbids remanufacture outright. But a faithful remake of a decades-old design must meet standards written for new designs, which it can rarely satisfy without ceasing to be that design. In practice the result is overwhelmingly a ban: the monopoly ends, and the exclusion from low-cost competition outlives it.

That barrier reaches an estimated 58 percent of expired-patent commerce. Five years after a ruling, the book projects, a household choosing remade goods wherever offered recovers roughly a third to half of what it now spends in those categories. One that buys nothing remade still recovers about fifteen percent, because the new tier must price against the remade tier beside it on the lot. The bottom forty percent gain most: they choose the remade item over the new one most often, and the recovery is the largest share of their income.

A general regulatory power cannot accomplish what a specific constitutional limit forbids.

The argument rests on two prongs — the Patent Clause and the Takings Clause — and seeks neither deregulation nor weaker standards. It proposes a narrow time-shift: a certified remake of a fully expired design meets the standards of its original platform year, while modern standards remain fully in force for new designs.

Imagine an America Where...

...energy and safety laws recognized the expired-patent commons, expired patents received grandfather exemptions, and remanufacturers only had to show independent engineering certification for the year-standard they meet.

- A newly remanufactured 1999 Peterbilt 379 with a Cat 3406E rolls off a domestic line for about \$80K — no DPF, no DEF, no SCR.
- No more 1 AM strandings on I-80 because a \$5,000 filter demanded attention.
- No more \$45,268 penalties for delete kits — the original design needs no kit to delete.
- Owner-operators choose: \$170K for the latest tech, or \$80K for proven pre-2000 reliability.
- Competition drives ALL truck prices down — the generic-drug effect.
- **Your job stays yours.** The remade truck runs about \$2.11 a mile with your wage inside it. The robot truck really costs \$8.56 a mile (Goldman Sachs, May 2026); the 85¢ it charges is investors buying the market until you're gone.
- **You drive without being watched.** No driver-facing camera. No telematics selling your day to insurers. No vendor software predicting when you'll quit.
- CARB's DPF mandate for pre-2000 patent-expired truck designs eliminated in all 18 states via the Supremacy Clause.

The Constitution already promises this. Someone just has to ask.



Want the book? Scan the code or type the link. Leave your name and email and check the box that says you want a copy. That is the whole ask. If you drive for a living, say so — owner-operators are the strongest plaintiff category the book identifies.

marti124.github.io/Patent_BkSignup/

Also at this link is the full length chapter 1 of the book which introduces the book. It provides a links to two podcasts about the book, one with Gord Magill and another one with Timothy Dooner.

The threat to trucking, by the numbers Sources: BLS · American Trucking Associations · Goldman Sachs Research · the platforms' investor materials, Sept. 2026

Who is exposed

- **4.88 million** Americans say their job is driving (BLS, 2025). Under full automation that is the floor, not a high estimate.
- **3.58 million** drive trucks (ATA); about **900,000** own the truck they drive.
- Each driver job carries roughly one more — travel centers, motels, diners, the shop, the payroll a wage feeds (multipliers of 1.9 to 2.1).
- Stacked honestly: **7.6 to 9.4 million** jobs exposed; **11 to 12 million** if households stop owning vehicles. Gross exposure across a transition, not permanent loss — but the hole opens first, and in rural counties.

How the wedge works

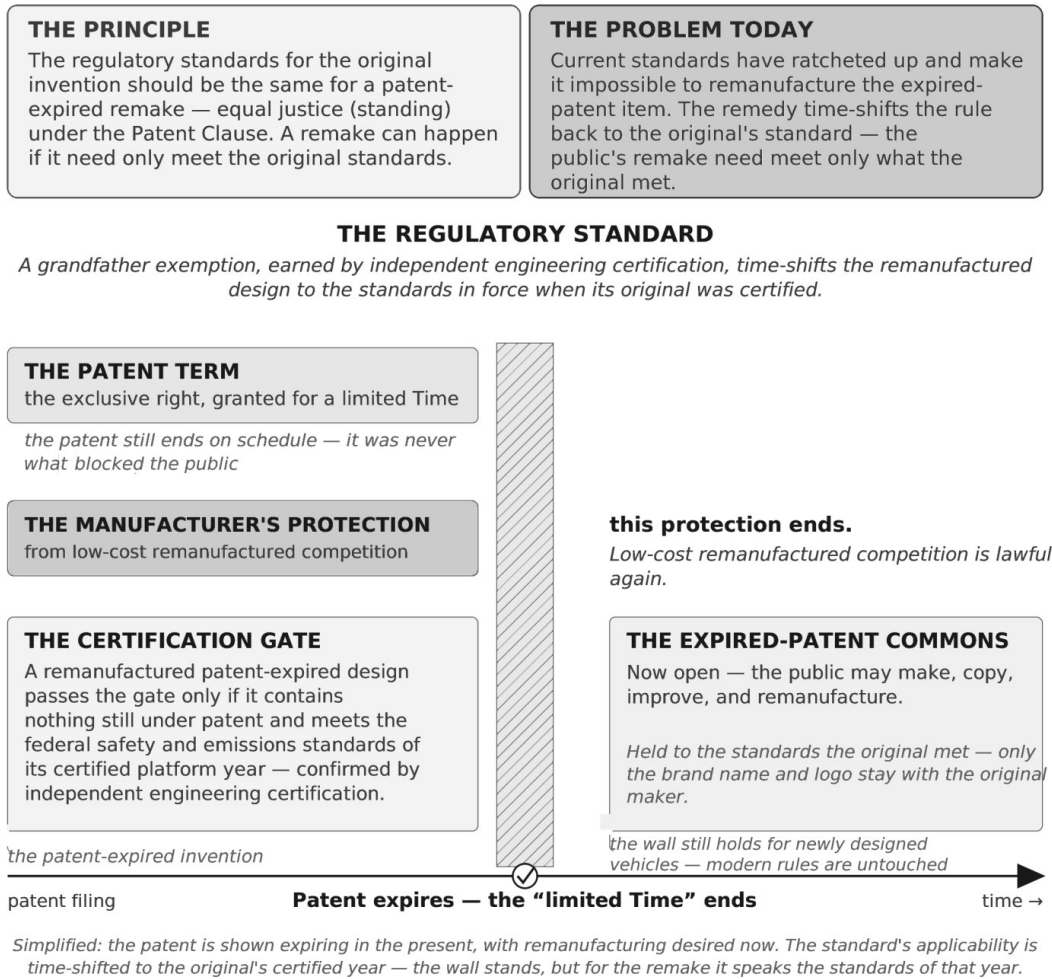
- One remote supervisor now watches about **six** driverless trucks; investor decks project **one per hundred**. Every step up that ratio is drivers without work.
- The robot is the one vehicle on the road the Patent Clause hasn't touched: every sensor, radar and line of code is under live patent. Your platform shed its royalties decades ago.
- The wall works for the robot: it prices your lawful alternative — the patent-expired truck — off the road until the robot isn't the better choice, just the only affordable one.

How the Book can stop this

- After the Supreme Court restores the Patent Bargain, it's plausible companies invested in autonomous trucking will go „bankrupt or shrivel (See above “Imagine an America Where...”

The proposed remedy, in a single diagram

The Desired SCOTUS Ruling Time-Shifts Regulations for Remanufacturing; the Commons Opens



What the book is

586 pages. Formerly titled *The Forgotten Half of the Patent Clause*; the content is virtually the same. Every source carries a live link, and 89 Supreme Court cases are surveyed and noted — including the ones that cut against the argument. Gord Magill, author of *End of the Road: Inside the War on Truckers*, wrote the foreword. Owner-operators are the strongest plaintiff category the work identifies among nineteen.

Magill has discussed his book and the industry twice on *The Tucker Carlson Show*, on C-SPAN's *Washington Journal*, on *War Room* with Stephen K. Bannon, and on Fox's *Ingraham Angle*. He writes at *Autonomous Truck(er)s* and hosts the podcast *Voice of GO(r)D*.

Three chapters are written for the cab. *The Trucker's Burden* is a constitutional brief for the American truck. *The Last Human Driver*, also a chapter for car drivers, shows why the robot truck is the one vehicle on the road whose cost structure the Patent Clause has not yet begun to relieve — and what that means for the roughly 900,000 owner-operators who own the truck they drive. The third chapter is for both truckers and car drivers, *The Surveillance Premium*.

What we are asking

Nothing that costs you anything. Scan the code, leave a name and an email, and say you want the book. That list is how the argument reaches a publisher — it shows who this reaches: truckers, not law professors.

The page you land on also carries three things you can read tonight: the first chapter, the book's brief, and an invitation to review the manuscript before it prints.

No spam, no selling your address, no legal opinion expected. Enthusiasm for the subject counts for as much.

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